

		are encouraged to work cooperatively to resolve any anticipated issues regarding future discovery into this issue. Defendant’s request for sanctions is denied because both sides acted with substantial justification based on Plaintiff’s assertion of constitutional privacy rights. (Code Civ. Proc. § 2025.480(j).)
4.	TOOLEY VS. RIVIAN LLC 2025-01519651	MOTION TO COMPEL ARBITRATION Defendant Rivian LLC’s unopposed motion to compel arbitration and to stay the action is GRANTED. Defendant contends Plaintiff’s claims are subject to arbitration pursuant to a “Rivian Motor Vehicle Agreement.” Plaintiffs have not filed an opposition. Legal standard The Federal Arbitration Act (FAA) authorizes enforcement of arbitration causes unless grounds exist in law or equity for the revocation of any contract. (9 U.S.C. § 2.) Similarly, under the California Arbitration Act (CAA), a party to an arbitration may move to compel arbitration if the other contractual party refuses to arbitrate. (Code Civ. Proc., § 1281.2.) “[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable.” (<i>Rosenthal v. Great Western Fin. Securities Corp.</i> (1996) 14 Cal.4th 394, 413 (<i>Rosenthal</i>)). “[T]he petitioner bears the burden of proving its existence by a preponderance of the evidence” and the party opposing the petition bears the burden of proving by a preponderance of the evidence of any fact necessary to any defenses raised. (<i>Ibid.</i>) Defendant seeks to compel arbitration under the FAA. <u>Analysis</u> <u>The Subject Arbitration Agreement</u> On 4/26/24, Plaintiffs leased a new 2024 Rivian Model R1S (the Subject Vehicle) from Defendant. (Orquiola Decl., ¶ 3, Ex. A.) To lease the Subject Vehicle, Plaintiffs executed a “Rivian Motor Vehicle Agreement” (RMVA). (Orquiola Decl., ¶ 4, Ex. B) The RMVA states on page 1, in part, “THIS AGREEMENT REQUIRES THE USE OF ARBITRATION ON AN INDIVIDUAL BASIS TO RESOLVE DISPUTES, RATHER THAN JURY TRIALS OR CLASS ACTIONS. PLEASE

REFER TO SECTION 20 FOR ADDITIONAL DETAILS.”
(Orquiola Decl., Ex. B at p. 1 [emphasis in original].)

The RMVA further provides in Section 20:

“Binding Arbitration. To the fullest extent permitted by applicable law and except for small claims or if you choose to opt-out as provided below, you and Rivian agree to resolve any claims, demands, disagreements, or disputes between us whether based in contract, tort, statute or otherwise arising from or related to this Agreement or our relationship, including advertising and other communications between you and Rivian, Rivian products or services, and as applicable, your credit application, or the purchase or condition of the Vehicle (a ‘Dispute’) by binding arbitration conducted by the American Arbitration Association (‘AAA’) in accordance with the AAA Consumer Arbitration Rules, unless you and we agree otherwise.” (Orquiola Decl., Ex. B at p. 7.)

It further states, **“You and we understand that we are both waiving our rights to go to court (other than small claims court, as provided below), to present our claims to a jury and to have claims resolved by a jury trial, and also that judicial appeal rights, if any, are more limited in arbitration than they would be in court.”** (Orquiola Decl., Ex. B at p. 7 [emphasis in original].)

Whether an Agreement to Arbitrate Exists

When a party petitions the court to compel arbitration, it “must allege the existence of an agreement to arbitrate the controversy (§ 1281.2)” and the provisions of the arbitration agreement must be set forth verbatim or a copy of the agreement must be attached to the petition and incorporated by reference. (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218 [citations omitted].)

“If the moving party meets its initial prima facie burden and the opposing party does not dispute the existence of the arbitration agreement, then nothing more is required for the moving party to meet its burden of persuasion.” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165, [disagreed with by *Ramirez v. Golden Queen Mining Co., LLC* (2024) 102 Cal.App.5th 821, on a different point.])

Defendant attached a copy of the RMVA as Exhibit B to the Orquiola Declaration reflecting Plaintiffs’ signatures.

Given the above and no opposition from Plaintiffs, the Court finds an agreement to arbitrate exists.

Whether the RMVA Covers Plaintiffs’ Claims

		As set forth above, the RMVA purports to cover “any claims, demands, disagreements, or disputes between us whether based in contract, tort, statute or otherwise arising from or related to this Agreement or our relationship, including advertising and other communications between you and Rivian, Rivian products or services, and as applicable, your credit application, or the purchase or condition of the Vehicle” (Orquiola Decl., Ex. B at p. 7.) This language covers Plaintiffs’ claims which relate to the warranties accompanying Plaintiffs’ leased Rivian. The party opposing arbitration “bears the burden to show the arbitration provision cannot be interpreted to cover the claims in the complaint.” (<i>Howard v. Goldbloom</i> (2018) 30 Cal.App.5th 659, 663.) The Court finds the RMVA covers Plaintiffs’ claims. <u>Enforceability of the Agreement</u> Once the court determines whether an agreement exists, it must then determine whether it is enforceable if any defense to its enforcement is raised. (<i>Rosenthal</i>, 14 Cal.4th at p. 413.) Plaintiffs have not opposed the motion and have therefore not raised any defenses as to enforceability. Accordingly, the Court GRANTS Defendant Rivian LLC’s motion to compel arbitration. The Court STAYS the action pending the completion of arbitration. The Court SETS a Status Conference re: Status of Arbitration for 11/20/26 at 9:00 a.m., in Department C32.
5.	LITZEN VS. ALBERTSONS COMPANIES, INC. 2024-01413486	MOTION TO SUBSTITUTE SUCCESSOR IN INTEREST FOR PLAINTIFF The motion for Manouchag Litzen to be appointed as successor in interest to plaintiff and decedent Charles Litzen is GRANTED. “A pending action or proceeding does not abate by the death of a party if the cause of action survives.” (Code Civ. Proc. §377.21.) “On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest.” (Code Civ. Proc. §377.31.)